

		Eighth, defendant challenges the 3.4 hours billed for negotiating vehicle surrender between August 21, 2025 and November 5, 2025. Plaintiff has block-billed the time and several of the entries are for scheduling surrender of the vehicle which is an administrative task that should not be billed at an attorney rate. Therefore, the amount billed is reduced by 0.8 hours. Nineth, Defendant challenges 1.3 hours billed by Plaintiff's counsel for internal communications on administrative and case management discussions. The court reduces the hours requested by 0.3 hours for internal communication on administrative tasks. Tenth, Defendant challenges 6.9 hours billed in communications with Plaintiff. The amount billed is reasonable and the court declines to exclude the requested fees. Eleventh, Defendant challenges 1.3 hours on administrative and case management tasks. Purely clerical or secretarial tasks should not be billed at a lawyer or paralegal's usual rate, regardless of who performs them. (<i>Missouri v. Jenkins</i> (1989) 491 U.S. 274, 288, fn. 10.) However, Defendant has failed to identify any dates of the challenged billing entries. Therefore, the request to exclude time billed on administrative and case management tasks is denied. Lastly, Defendant challenges the 2.2 hours billed to draft the fee Motion on the grounds the fee motion comprises of a generic 7-page motion and Geoulla's declaration is substantially the same from case to case. The amount requested is excessive and reduced by 0.5 hours. Based on the foregoing, the hours requested are reduced by 4.8. The court awards attorneys' fees of \$10,665 (\$450 x 23.7 hrs.). Plaintiff has filed a Memorandum of Costs in which she seeks \$578.76 in costs. Defendant failed to file a motion to tax costs, and the time to do so has passed. (Cal. Rules of Ct., Rule 3.1700, subd. (b)(1). Plaintiff is awarded \$578.76 in costs. Moving party shall give notice.
12	SBS Trustdeed Network v. Estate of Elaine Thomas 2023-01338514 Motion for Leave to Intervene	Petitioner Bourbon Holdings, LLC's ("Bourbon Holdings") motion for an Order allowing Bourbon Holdings to file a complaint in intervention, seeking a release of interpleaded funds is DENIED. Here, Bourbon Holdings is already a party to the action. On 4-26-24, Cross-Complainant Randall Sharp filed a Verified Cross-Complaint against Bourbon Holdings for Nullification of

		Contract, Breach of Contract, and Declaratory Relief. Bourbon Holdings filed an answer to the Cross-Complaint on 6-17-24. Therefore, Bourbon Holdings is already a party to the action and not a third party entitled to intervene pursuant to section 387.
13	Stranger v. McKenna Motors HB 2020-01152783 Petition to confirm arbitration award	Defendants (McKenna Motors HB, Neda Ingram and Danny McKenna) motion to confirm the arbitrator's decision dismissing Plaintiff's claims for failure to prosecute is GRANTED. The request for costs against Plaintiff is DENIED. The arbitrator's award dated 2/9/26 found that Plaintiff had failed to prosecute the action and made it difficult for Defendants to defend the action, mandating dismissal of the over-five-year-old case. The arbitrator found that although FEHA does not generally allow Defendants to recover attorney fees, Defendants were entitled to recover costs and expenses as the prevailing party under the California Arbitration Act and JAMS Employment Arbitration Rules. The arbitrator awarded Defendants total fees and costs of \$76,267.50 which included reimbursement of the arbitrator's nonrefundable \$64,805.00 retainer, the arbitrator's fees of \$7,062.50 for reviewing the motion to dismiss, and Defendants' fees/costs associated with drafting the motion to dismiss. The arbitrator did not make a finding that the action was frivolous, unreasonable, or groundless under FEHA. Although the arbitrator identified the monetary award as "sanctions," in fact the award constituted the arbitrator's fees as well as certain of Defendants' fees and costs. Under Armendariz and Government Code section 12965, the arbitrator's award of sanctions, fees, and/or costs against Plaintiff exceeded their legal authority. Defendants shall give notice.
15	Melchor v. Kia America, Inc. 2025-01493559 Demurrer to Complaint	Defendant Kia America, Inc.'s Demurrer to Plaintiff's Complaint is OVERRULED. Defendant's request for judicial notice of KIA having opted into the new lemon law procedures of Code of Civil Procedure section 871.20 as shown on the official California Department of Consumer Affairs website is granted. As to causes of action 1st – 4th, Defendant asserts these causes of action are barred by the six-year statute of repose set out under Code of Civ. Proc. § 871.20.